

1 ENGROSSED SENATE
2 BILL NO. 2069

By: Kern of the Senate

3 and

4 Townley of the House
5

6 An Act relating to game and fish; amending 29 O.S.
7 2021, Section 5-406, which relates to migratory
8 birds; defining terms; prohibiting the taking of
9 migratory game birds by certain methods; providing
10 exceptions; providing penalties for violations;
11 requiring revocation of certain licenses upon
12 conviction; requiring court to transmit certain
information; defining term; and providing an
effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 29 O.S. 2021, Section 5-406, is
15 amended to read as follows:

16 Section 5-406. A. As used in this section:

17 1. "Baiting" means the direct or indirect placing, exposing,
18 depositing, distributing, or scattering of salt, grain, or other
19 feed that could serve as a lure or attraction for migratory game
20 birds to, on, or over any areas where hunters are attempting to take
21 them;

22 2. "Baited area" means any area on which salt, grain, or other
23 feed has been placed, exposed, deposited, distributed, or scattered,
24 if that salt, grain, or other feed could serve as a lure or

attraction for migratory game birds to, on, or over areas where
hunters are attempting to take them. Any such area will remain a
baited area for ten (10) days following the complete removal of all
such salt, grain, or other feed;

3. "Manipulation" means the alteration of natural vegetation or
agricultural crops by activities that include, but are not limited
to, mowing, shredding, discing, rolling, chopping, trampling,
flattening, burning, or applying herbicide treatments. The term
manipulation does not include the distributing or scattering of
seed, grain, or other feed after removal from or storage on the
field where grown;

4. "Migratory game birds" means those migratory birds included
in the terms of conventions between the United States and any
foreign country for the protection of migratory birds, for which
open seasons are prescribed in this subsection and which belong to
the following families:

- a. Anatidae (ducks, geese, including brant, and swans),
- b. Columbidae (doves and pigeons),
- c. Gruidae (cranes),
- d. Rallidae (rails, coots, and gallinules), and
- e. Scolopacidae (woodcock and snipe);

5. "Normal agricultural operation" means a normal agricultural
planting, harvesting, post-harvest manipulation, or agricultural
practice that is conducted in accordance with official

1 recommendations of State Extension Specialists of the Cooperative
2 Extension Service of the United States Department of Agriculture;
3 and

4 6. "Other feed" means any simulated, synthetic, imitation, or
5 artificial products made from plastic, rubber, foam, or other
6 unnatural ingredients to resemble salt or grain, as well as any
7 other edible feed that could lure or attract game birds that is not
8 defined as a salt or grain.

9 B. No person may hunt, capture or kill any species of migratory
10 birds, including but not limited to ducks, brant, and geese, except
11 as provided in the Treaties of the United States and Acts of
12 Congress relating to such endeavors, and as annually fixed by the
13 federal department in control of migratory birds and the Commission.

14 C. 1. No person shall take migratory game birds by the aid of
15 baiting, or on or over any baited area, where a person knows or
16 reasonably should know that the area is or has been baited.

17 2. Nothing in this section prohibits the taking of any
18 migratory game birds except waterfowl, coots, and cranes, on and
19 over lands or areas that are not otherwise baited areas, and where
20 grain or other feed has been distributed or scattered solely as the
21 result of manipulation of an agricultural crop or other feed on the
22 land where grown, or solely as the result of a normal agricultural
23 operation.

1 D. 1. Any person convicted of violating the provisions of this
2 section shall, upon conviction, be guilty of a misdemeanor
3 punishable by a fine not less than Two Hundred Fifty Dollars
4 (\$250.00) nor more than Seven Hundred Fifty Dollars (\$750.00), or by
5 imprisonment in the county jail for a period not to exceed ten (10)
6 days, or by both such fine and imprisonment. Any person convicted
7 of a second or subsequent violation of the provisions of this
8 section shall be punishable by a fine not less than Seven Hundred
9 Fifty Dollars (\$750.00) nor more than One Thousand Five Hundred
10 Dollars (\$1,500.00), or by imprisonment in the county jail for a
11 period not to exceed ten (10) days, or by both such fine and
12 imprisonment.

13 2. Any hunting or fishing license issued to a person by the
14 Department of Wildlife Conservation shall be automatically revoked
15 upon conviction of the person for violating the provisions of this
16 section. The revocation shall be for a period set by the court of
17 not less than one (1) year nor more than ten (10) years. If the
18 court does not set a period, the revocation shall be for one (1)
19 year from the date the conviction becomes final. During the period
20 of revocation, the Department shall not issue the person a hunting
21 or fishing license. If the court does not set a revocation period,
22 the Department shall not issue the person a license within one (1)
23 year of the conviction.

1 3. The hunting or fishing license of any person convicted of a
2 second or subsequent violation of the provisions of this section
3 shall be automatically revoked upon conviction of the person for
4 violating the provisions of this section. The revocation shall be
5 for a period set by the court of not less than three (3) years nor
6 more than ten (10) years. If the court does not set a period, the
7 revocation shall be for three (3) years from the date the conviction
8 becomes final. During the period of revocation, the Department
9 shall not issue the person a hunting or fishing license. If the
10 court does not set a revocation period, the Department shall not
11 issue the person a license within three (3) years of the conviction
12 of the person pursuant to this section.

13 4. A person who has a license or permit revoked pursuant to
14 this section shall surrender the revoked license or permit to the
15 court, or the court may order the defendant to surrender the license
16 or permit directly to an officer from the Department of Wildlife
17 Conservation present at the hearing. If the license or permit is
18 surrendered to the court, the court shall send the Department the
19 revoked license. The court shall also send the Department a copy of
20 the judgment of conviction. In lieu of sending a paper copy of the
21 documents and information required by this subsection, the court
22 clerk may transmit the conviction information by using an electronic
23 method authorized by the Department.

5. For the purposes of this section, "conviction" shall include a plea of guilty or nolo contendere to an offense or the imposition of deferred adjudication for an offense.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives